

25STLC02120 25STLC02120

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 25STLC02120 Hearing Date: August 3, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Antonia Flores' Motion

to Deem Requests for Admissions Admitted, or in the Alternative, to Compel Further Responses to Requests for Admissions, Set One, is denied.

Defendant

Villegas Properties, LLC's request for sanctions is granted in the amount of \$950.00 to be paid by Plaintiff to defense counsel within 20 days' notice of this order.

Plaintiff must appear through counsel until attorney Imperiale's appearance is terminated.

Analysis:

On March 18, 2025, Plaintiff Antonia Flores ("Plaintiff") filed the Complaint in this action against Defendant Villegas Properties, LLC ("Defendant"). Defendant filed a Demurrer to the Complaint, which the Court overruled on September 8, 2025. (Minute Order, 09/08/25.) Defendant filed its Answer to the Complaint on September 19, 2025.

Plaintiff filed a Motion for Judgment on the Pleadings, which the Court denied on December 17, 2025. (Minute Order, 12/17/25.) On the same day, Plaintiff filed a Notice of Limited Scope Representation indicating that she would be represented by Attorney James T. Imperiale, Esq. at the hearing.

Plaintiff filed a Motion to Compel

Responses to Plaintiff's Special Interrogatories, Set One; Requests For Production, Set One; and Requests For Admission, Set One; or in the alternative to Deem Requests for Admission Admitted; Request for Monetary Sanctions, on April 6, 2026. At the hearing on June 4, 2026, the Court heard argument from both parties and then placed the Motion off calendar. (Minute Order, 06/04/26.) The Court ordered Defendant "to respond to Plaintiff's Special Interrogatories, Set One; Requests or Production, Set One; and Requests for Admission, Set One no later than 06/25/2026 without objecting on the basis that the discovery was served on Defendant Villegas Properties, LLC by Plaintiff Antonia Flores in pro per." (Ibid.)

Plaintiff filed the instant Motion

to Deem Requests for Admissions Admitted, or in the Alternative, to Compel Further Responses to Requests for Admissions, Set One, on July 2, 2026. Defendant filed an opposition on July 13, 2026.

Discussion

Plaintiff served Defendant with the Requests for Admission, Set One, on March 10, 2026. (Motion, Flores Decl., ¶12 and Exh. A.) Following the Court's June 4, 2026 order, Defendant served a "Response to Request for Admissions, or in the Alternative to Deem Requests for Admissions, Admitted, Set One" on Plaintiff on June 13, 2026. (Id. at ¶14 and Exh. B.) Plaintiff received the verification on June 19, 2026, which incorrectly referred to "plaintiff Villegas Properties, L.L.C." and was signed by Carlos Villegas as "Agent for Plaintiff," when in fact Villegas Properties LLC is the defendant in this case. (Id. at ¶15 and Exh. C.) Defendant does not dispute that the verification is incorrect and is prepared to serve a corrected verification. (Opp., Ware Decl., Exh. A.)

Plaintiff first argues that the responses were untimely, which is incorrect because they were served within the time specified in the Court's June 4, 2026 minute order.

Plaintiff also argues that the responses are not in substantial compliance with governing statutes because of the reference to Defendant as "plaintiff." This is a clerical error that does not, as Plaintiff urges, renders Defendant's response

to the Requests for Admission, Set One, "fatally defective". The verification identifies the person who signed it and although it refers to "plaintiff" makes clear that the verification applies to Villegas Properties LLC. Defendant attaches a corrected verification to its opposition. (Opp., Ware Decl., ¶6, Exh. A.)

Plaintiff asks in the alternative for the Court to order Defendant to serve further responses. The request to compel further responses is brought pursuant to Code of Civil Procedure section 2033.290, which requires an accompanying meet and confer letter. (Code Civ. Proc., § 2033.290, subd. (b)(1).) Also, a motion to compel further responses must include a separate statement, as required by California Rules of Court Rule 3.1345(a). The Motion includes neither a meet and confer declaration, nor a separate statement. Accordingly, the request for an order compelling Defendant to serve further responses is denied.

Defendant moves for an award of sanctions pursuant to Code of Civil Procedure section 2033.280, which mandates sanctions when a party brings an unsuccessful motion without substantial justification. (Code Civ. Proc., § 2033.280, subd. (d).) Plaintiff has not filed a reply explaining why the request to compel further responses is substantially justified despite the failure to comply with mandatory requirements outlined above. Therefore, Defendant is awarded sanctions of \$950.00. (Opp., Ware Decl., ¶¶8-9.)

Finally, the Court addresses Defendant's argument that Plaintiff is represented by counsel based on the Notice of Limited Scope Representation filed June 4, 2026. That Notice specified that attorney James Thomas Imperiale would represent Plaintiff only at the hearing on June 4, 2026. By signing the Notice, Plaintiff agreed to sign a Substitution of Attorney-Civil (form MC-050) at the completion of the specified limited scope representation. Neither Plaintiff nor attorney Imperiale has filed a form MC-050 reflecting that the limited scope representation is complete, nor has attorney Imperiale filed an Application to Be Relieved as Attorney on Completion of Limited Scope Representation (form CIV-151). Accordingly, attorney Imperiale remains counsel of record. Plaintiff must appear through counsel until attorney Imperiale's appearance is terminated through either of the methods identified above, or through an application pursuant to Code of Civil Procedure, § 284(2).

Conclusion

Plaintiff Antonia Flores' Motion

to Deem Requests for Admissions Admitted, or in the Alternative, to Compel Further Responses to Requests for Admissions, Set One, is denied.

Defendant

Villegas Properties, LLC's request for sanctions is granted in the amount of \$950.00 to be paid by Plaintiff to defense counsel within 20 days' notice of this order.

Plaintiff must appear through counsel until attorney Imperiale's appearance is terminated.

Judicial Assistant to give notice.